IN THE DISTRICT COURT OF GHANA, NGLESHIE AMANFRO DISTRICT COURT HELD ON 21ST DAY OF MAY, 2025 BEFORE HER WORSHIP EMELIA K. ABRUQUAH ESQ., (MRS)

SUIT NO: GR/NGA/DC/A2/05/2025

ANNA EPHSON **PLAINTIFF**

VRS

FELICIA BUABENG, alias DAAVI **DEFENDANTS**

ALHAJI RAZAK

PLAINTIFF **PRESENT**

DEFENDANT **ABSENT**

JUDGMENT

The Plaintiff herein instituted this action against the Defendants jointly and severally for the recovery of an amount of GHC4,8OO.OO being outstanding money the Defendants took from Plaintiff as rent for one year but failed to rent the room to the Plaintiff.

2. A recovery of GHC300.00 from the first Defendant being money took as commission to rent the room to the Plaintiff which he failed to rent the room to the Plaintiff.

3. Recovery of GHC1,200.00 from the Defendants jointly and severally being expenses incurred because of the failure of Defendants to give Plaintiff the room.

4. interest on the amount to be calculated from 15th January, 2024 till date of final payment.

5. Costs.

The Defendants, despite being duly served with the suit personally and multiple hearing notices, failed to appear before this Honourable Court. The wilful refusal to attend court proceedings to cross-examine the Plaintiff and her witnesses or present their defence before the court, meant, they have forfeited the opportunity to have their side of the story heard.

Under Order 25 Rule 1(2)(a) of the District Court Rules, 2009 (C.I. 59), where an action is called for trial and the Defendant fails to attend, the Plaintiff would be allowed to prove his claim.

The Defendants had every opportunity to appear before this Honourable Court to cross-examine the Plaintiff and any witnesses, as well as to adduce evidence in defence of the suit against them. However, by their deliberate decision not to attend court, they forfeited this right extended to them to challenge the Plaintiff's claims. Consequently, they cannot, at any stage, contend that they were denied access to justice.

The Plaintiff filed her witness statement on 6th June, 2024 in which he testified that in December 2023, she was looking for a room to rent and someone introduce the first Defendant to her as an agent who could help her get a room at her place of choice to rent. She testified that the first Defendant took she and a witness in this case to a number of places until the finally landed at second defendant's place. According to the Plaintiff, she liked the place so she negotiated the rent with the second Defendant and agreed on GHC400.00 per month. The second Defendant then demanded one year rent advance, which was GHC4,800.00 to be used to finish up the place within two weeks for her, which she obliged because she has seen what work was left to be done. She then gave the money to the witness in this case, who also forwarded it to the first Defendant and she finally gave it to the second Defendant. After paying the rent to the second Defendant, the first demand also demanded her commission of GHC300.00 plus walking fee of GHC50.00. Plaintiff testified further that the second Defendant failed to honour his promise to make the room available, so Plaintiff

has to move her belongings from place to place incurring additional cost of GHC1,200 in the process. According to the Plaintiff, Defendants promised again to make the room available within a week but again failed to do so and both Defendants stopped picking her calls so she went to inspect the room with her witness in this court and they were informed by second defendant's wife that the second Defendant has already taken rent advance from someone to complete the place for the person. She said upon hearing this from the second Defendant's wife, she demanded a refund of all the monies spent in the process and other expenses incurred but the Defendants failed to do so, hence this action.

The Plaintiff called one witness who was present at all times during the negotiations. PW1 filed her witness statement on 6th June, 2024. She testified that the Plaintiff who is her friend told her that she needed a single room self- contained to rent and she knows the first Defendant as an agent so she introduce her to the Plaintiff and she promised to assist Plaintiff get a room. According to the PW1, they went round with the first Defendant and finally landed in Second Defendant's house where Plaintiff like the place. She testified that they bargained and got the room at GHC400.00 and the Plaintiff paid GHC4,800.00 for a year's rent. After taking the money, the second Defendant promised to make the room ready within two weeks and to also give her the tenancy agreement with the receipt of payment but he failed to honour this promise. She indicated that the Plaintiff has to incur cost moving her things from her former place to another place. That they were informed by the second Defendant's wife that second Defendant has already taken money from another person to prepare the same room for that person. The first Defendant also took GHC 300.00 from the Plaintiff as commission and further took GHC 50.00 as walking fee.

This court is called upon to determine whether or not the Plaintiff is entitled to her reliefs.

The Court heard the case of the Plaintiff and her witness alone since the Defendants failed to make appearance in this court to defend the suit. A defaulting Defendant takes the blame for failing to appear in Court to defend an action against him. In the case of *Republic vrs High Court (Fast Track Division), Accra; Ex Parte State Housing Co. Ltd* (No. 2) (*Koranten-Amoako Interested Party*) [2009] SCGLR 185, the venerable Chief Justice Wood CJ observed that if a party like the Defendants

herein, who have been served with notices to appear in court to be heard, fail to attend court, they cannot later turn around and accuse the court of a breach of natural justice. See also *Republic vrs High Court, (Human Rights Division), Accra, Ex parte Josephine Akita (Mancell-Egala & Attorney General Interested Parties)* [2010] SCGLR 374 @ 384 per Brobbey JSC; *Republic vrs Court of Appeal, Accra, Ex Parte East Dadekotopon Development Trust, Civil Motion No. J5/39/2015, dated 30th July 2015* and *Baiden vrs Solomon* [1963] GLR 488 at page 495; In Re Kumi (Dec'd); Kumi vrs Nartey [2007-2008] 1 SCGLR 623 @ 628; Bilson v Apaloo [1981] GLR 24 SC.

The evidence of the Plaintiff and her witness have not been challenged since they were not cross examined. In the case of *Ghana Ports and Harbours Authority & Captain Zeim vrs Nova Complex Ltd.* (2007-08) SCGLR 806 and *Takoradi Flour Mills vrs Samir Faris* (2005-06) SCGLR 882, the Supreme Court held that:

"*Where the evidence led by a party is not challenged by his opponent in cross examination and the opponent does not tender evidence to the contrary, the facts deposed to in that evidence are deemed to have been admitted by the opponent and must be accepted by the trial court*." See also *Omaboe vrs Kwame* [1978] 1 GLR 122; *Republic vrs High Court (Human Rights Division)*, Accra; Ex Parte Akita [2010] SCGLR 374; *Republic vrs High Court, Accra; Ex Parte State Housing Co. Ltd* (No. 2) [2009] SCGLR 185; *Republic vrs High Court (Fast Track Division), Accra, Ex Parte Ayikai (Akosoku IV Interested Party)* [2015-2016] 1 SCGLR 289.

As indicated, though the defendants were served with all processes, fail or refused to attend court hearing to defend the suit. It is therefore deemed that the defendants have admitted the Plaintiff's reliefs and her evidence as both stood uncontroverted or challenged.

Accordingly, I enter judgment in favour of the Plaintiff for all the reliefs sought except the relief four which is about interest. The court will not assess interest on the monies paid for the rent and related matters.

I award costs of GHC500.00 in Plaintiff's favour.

H/W EMELIA K. ABRUQUAH (MRS)

(MAGISTRATE)